

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
-----X
ANTHONY DAVIS,
-----X
Plaintiff(s),
-against-
Plaintiff(s),
Index No:
Plaintiffs designate
Bronx County
the place of trial
The basis of venue is
location of occurrence
-----X
SUMMONS
Plaintiffs reside at:
365 East 183rd Street
Bronx, New York 10458
-----X
Defendant(s).
-----X

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 5, 2014

Yours, etc.

Jeffrey J. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendants' Address:
THE CITY OF NEW YORK
100 Church Street,
New York, NY 10007
NEW YORK CITY POLICE OFFICER
GABRIEL M. BRAITH (Shield No: 25605)
2120 Ryer Avenue
Bronx, New York 10457
NEW YORK CITY POLICE OFFICER
DANIEL GAGLIARDI (Shield No: 004941)
2120 Ryer Avenue
Bronx, New York 10457

BELOVIN & FRANZBLAU, LLP

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Plaintiff, by and through his attorneys, BELOVIN & FRANZBLAU, LLP, as and for a verified complaint, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That all the times hereinafter mentioned, plaintiff was and still is a resident of the City and State of New York, County of Bronx.
2. At all the times herein, the defendant, CITY OF NEW YORK, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of Bronx.
3. Upon information and belief, the defendant, CITY OF NEW YORK, employed NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BRAITH, who were herein duly employed and acting New York City Police Officers or other ranking

BELOVIN & FRANZBLAU, LLP

officers of the City of New York, County of Bronx, State of New York and upon information and belief, the defendants, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, were and still are, at all times herein mentioned, residents of the State of New York, City of New York, County of Bronx.

4. Upon information and belief, that all times herein, the defendants, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, were and still are employees of The City of New York Police Department as Police Officers and/or other ranking Officers, and were at all times herein acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendants, **NEW YORK**

CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of Bronx, and under the authority of the office as Police Officers for New York City.

7. Prior to the commencement of this action, on the 7th day of October, 2013, a Notice of Claim was duly served herein on the defendants. That on 27th 1st day of January, 2014, the defendant, City of New York, conducted a 50-H hearing pursuant to the General Municipal Law. That more than thirty days have expired since the filing of a Notice of Claim and the defendant has failed and neglected to adjust the claim. This action is timely brought.

8. Upon information and belief, on or about the 2nd day of March, 2011, the defendant, **THE CITY OF NEW YORK**, by their employees, the defendants, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, falsely and maliciously accused the plaintiff, **ANTHONY DAVIS**, of crimes and violations.

9. Upon information and belief, said charges were brought against the plaintiff, **ANTHONY DAVIS**, with malice.

10. Upon information and belief, there was no probable cause for bringing said charges against the plaintiff and said charges were false and defendants intended to maliciously prosecute plaintiff.

11. Upon information and belief, as a result of the above malicious prosecution, plaintiff was forced to make several Court appearances to defend himself and suffered great fear, anxiety and emotional pain and suffering while he waited until the charges were eventually dismissed.

12. Upon information and belief, on September 12, 2013, all charges were dismissed against the plaintiff.

13. Upon information and belief, the above actions of the defendants, **THE CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, constitute malicious prosecution by the defendants, all against the plaintiff, **ANTHONY DAVIS**.

14. By reason of the foregoing **MALICIOUS PROSECUTION** the plaintiff, **ANTHONY DAVIS**, sustained personal, physical, mental and emotional injuries, loss of esteem, shock, humiliation, embarrassment, loss of liberty, loss of time, loss of enjoyment of

life and is entitled to punitive damages against defendants, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI and NEW YORK CITY POLICE OFFICER GABRIEL BAAITH**, and was otherwise damaged, all in a sum exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs "1" through "14".

16. Upon information and belief, during all the times herein, the individual defendants acted under the color of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

17. Upon information and belief, the defendants engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States. The defendant in maliciously prosecuting plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution including the right to be free of false and malicious accusations, unnecessary and unlawful detention, assault, battery and all other rights secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants acted knowingly

and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

18. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

19. Plaintiff hereby demands reasonable attorneys fees pursuant to 42 United States Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs "1" through "19".

21. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI** and **NEW YORK CITY POLICE OFFICER GABRIEL BAAITH** and the New York City Police Department, constituted and demonstrated an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI** and **NEW YORK CITY POLICE OFFICER GABRIEL BAAITH** and/or constituted a continuing pattern of abuse and misconduct by

the New York City Police Department, **NEW YORK CITY POLICE OFFICER DANIEL GAGLIARDI** and **NEW YORK CITY POLICE OFFICER GABRIEL BAAITH** and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

22. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

23. Plaintiff hereby demands reasonable attorneys fees pursuant to 42 United States Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgement on each cause of action against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Court, plus punitive damages against all defendants, in an amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
March 5, 2014

Yours, etc.

Jeffrey J. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

VERIFICATION

State of New York) ss:
County of Bronx)

Anthony Davis, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above **VERIFIED COMPLAINT** and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Anthony Davis

Sworn to before me on
March 5, 2014


Notary Public

LAURA PANISSIDI
Notary Public, State of New York
Notary No. 01PA501786
Qualified in BRONX County
Commission Expires September 13, 2017

Index No.

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OFFICER GABRIEL N. BAIATH (Shield No: 25605) and NEW YORK CITY
POLICE OFFICER DANIEL GAGLIARDI (Shield No: 004941),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin & Franzblau, L.L.P.
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, NY 10467
718-655-2900

TO: